

26SMCV02706 26SMCV02706

County: los-angeles
Division: Civil Law and Motion
Department: 207
Hearing date: 2026-08-04
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Case Number: 26SMCV02706 Hearing Date: August 4, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 4, 2026

CASE NUMBER

26SMCV02706

MOTION

Preserve Electronically Stored Information

MOVING PARTY

Plaintiff Nina Gilshteyn, M.S.

OPPOSING PARTY

none

MOTION

This case arises from a dispute concerning Plaintiff's allegedly wrongful exclusion from various Jewish community, professional, and graduate organizations and programs. On May 18, 2026, Plaintiff Nina Gilshteyn ("Plaintiff") filed suit against the following Defendants:

1.

American Friends of Aish Hatorah – Western Region Inc.,
also known as Aish LA and doing business as Aish Lit and My Aish

2.

Friends of @JHUBLA, doing business as JHUBLA

3.

Hillel the Foundation for Jewish Campus Life, doing
business as Hillel at UCLA

4.

Jewish Graduate Student Initiative, Inc. doing business
as Jewish Graduate Organization ("JGO")

5.

Moishe House, also known as Moishe House
Pico-Robertson, Moishe House Venice, Moishe House West LA, and Moishe House
Sherman Oaks

6.

Balagan Collective

7.

Meetjew

8.

Rabbi Gavin Mordechai Teller

9.

Rabbi David J. Sorani

10. Shira

Melul

11. Dalia
Partouche

12. Rabbi
Yitz Jacobs

13. Rebecca
Neckritz

14. Rebecca
Jesin

15. Naomi
Cooper

16. Rachael
Petru

17. Leslie
Johns

18. Elisabeth
Grossman

19. Daniel
Ebrahimi

20. Miquela
Climo

21. Avi
Climo

22. Chaz
Volk

23. David
Kashani

24. David
Chernobylsky

25. Amit
Hadad

26. Gil
(Doe 1), doing business as HAFLA LA

27. Siarra
Orange Nielsen

28. Leah
Golfiz

29. Aaron
Golfiz

30. Daniel
Melamed

The Complaint alleges nine causes of action as follows:

1.
Intentional Interference with Prospective Economic
Advantage

2.
Violation of Education Code 220

3.
Violation of Education Code 262.4

4.
Intentional Infliction of Emotional Distress

5.
Defamation Per Se

6.

False Light

7.

Civil Conspiracy

8.

Violation of Banes Act

9.

Public Disclosure of Private Facts

Plaintiff now moves for an order requiring third parties Meta Platforms, Inc.; Whatsapp LLC; Verizon Communications Inc.; and T-Mobile US, Inc. to preserve electronically stored information ("ESI"). The motion is unopposed.

ANALYSIS

As a threshold matter, all moving and supporting papers must be served at least 16 court days prior to the hearing. (Code Civ. Proc., § 1005, subd.

(b).) Here, Plaintiff has not filed any proof of service demonstrating that the moving and supporting papers were served in compliance with Code of Civil Procedure section 1005, subd. (b). Although none of the named Defendants have yet appeared, Plaintiff has not demonstrated service of the motion on the impacted non-parties against whom Plaintiff seeks an order.

Further, the only legal basis Plaintiff has provided for the Court to enter the requested order, requiring that several non-parties to the litigation preserve various electronically stored information, is the Court's inherent authority, pursuant to Code of Civil Procedure section 128, subdivision (a)(8).

That section provides: "Every court shall have the power [...] To amend and control its process and orders so as to make them conform to law and justice."

The Court does not find Plaintiff has provided adequate authority for the Court to issue the requested orders against non-parties to the instant litigation. To

the extent Plaintiff wishes to obtain discovery from non-parties, there are generally other legal channels available for her to do so.

CONCLUSION AND ORDER

For the reasons stated, the Court denies Plaintiff's motion on procedural grounds.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 4, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court